

[REDACTED]

JUSTIFICATION REVIEW DOCUMENT
FAR Part 16 Justification for an Exception to Fair Opportunity

Program/Equipment: SpyCloud: Cyber & Information Exposure Risk Monitoring

Authority: 10 United States Code 3406(c)(5) as implemented by Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B) and FAR 16.505(a)(4), "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".

Amount: [REDACTED]

Prepared by:

[REDACTED]

Contracting Officer:

[REDACTED]

Technical:

[REDACTED]

Requirements:

[REDACTED]

Controlled by: Army
Controlled by: ACC-APG
CUI Category: PROCURE

[REDACTED]

[REDACTED]

[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:

[REDACTED]

[REDACTED]

[REDACTED]

Department of the Army
Justification for Exception to Fair Opportunity - Brand Name
Under Multiple Award Indefinite Delivery Contracts

1. Requiring Activity: Assistant Secretary of the Army (Acquisition, Logistics and Technology), Assistant Deputy for Acquisition and Systems Management (Data, Engineering and Software), 2530 Crystal Drive (Crystal City) Arlington, VA 22202.

2. Contracting Activity: Army Contracting Command-Aberdeen Proving Grounds, ATTN: Digital Capabilities Center of Excellence (DC3oE), 6472 Integrity Court, Building 4401, Aberdeen Proving Grounds MD 21005

3. Description of Action: Request is for a new estimated [REDACTED] Competitive Firm-Fixed Price Delivery Order for SpyCloud: Cyber & Information Exposure Risk Monitoring brand name under Computer Hardware, Enterprise Software and Solutions (CHESS/Digital Market) with a period of performance from 9 March 2026 through 8 March 2027. Fiscal Year 2026 funding under Research, Development, Test, and Evaluation, Army (RDT&E) will be used.

4. Description of Supplies/Services:

SpyCloud is the largest collection of open-source (OSINT) enriched Identity Intelligence assets, 300+ billion records of personal information on 1/3 of the world's population, from 33,000+ data breaches, 750+ million malware infected devices, 21+ billion web cookie records, 3+ billion crypto addresses and other covert sources. 65% of SpyCloud's data is from foreign sources with 25% of this data being personal data on Chinese, Russian and Iranian people, and institutions.

SpyCloud solves the problem and cost of continuous collection of identity data, infiltration of criminal darknet closed and offline groups, massive processing of billions of raw data assets and storage of a normalized and API accessible data lake on AWS. SpyCloud validates every source for fidelity, using AIML developed from 6 years of experience in collecting criminal data. As an example, SpyCloud can detect fake data from nuances in password formats by geographic region. Each asset is enriched with its original source for provenance. On a massive scale, SpyCloud normalize the raw files, resolves language differences, cracks passwords at scale, links assets, and parse the data into a standard data schema that provides offensive and defensive actionable intelligence to support mission outcomes. SpyCloud adheres to all US PAI laws and guidelines in the collection of data.

The highest actionable data is SpyCloud's collection of malware infected victim devices that provide a digital recording of a victim's online activity and provide unmatched visibility behind firewalls and into the dark web without any OPSEC risks. For example, SpyCloud data includes infected devices used by Chinese and Russian military and government employees. The insights derived from these infected devices include online

[REDACTED]

activities, infrastructure, IP addresses, plaintext credentials used to login to applications and networks, and digital evidence of links to suppliers, research institutions and foreign entities.

[REDACTED]

SpyCloud is actively being used by US DoD, IC and Law Enforcement intelligence and investigative agencies. The listing on the exchange may include US persons data and PII data. Filters can be set to remove US persons as best as possible based on geolocation of an infected device and PII data element that directly identifies a US person such as SSN.

The total estimated value for this procurement is [REDACTED] for a one-year base period Firm-Fixed-Priced (FFP) delivery order under a multiple award Indefinite Delivery / Indefinite Quantity (IDIQ) contract for the procurement of Commercial Off-the-Shelf (COTS) brand name.

[REDACTED]

Estimated Quantity:

Product	Estimated QTY
Supply Chain GVT - Base including 100 Domains	1
Supply Chain GVT - 100 Domains (requires Supply Chain - Base)	1
Investigations PRO (license)	2
Analyst Credits - 25 Credits	1

5. Authority Cited: 10 United States Code 3406(c)(5) as implemented) by FAR 16.505(b)(2)(i)(B) and FAR 16.505(a)(4), "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".

6. Reason for Authority Cited:

- a. **Background:** The proposed contractor, SpyCloud, possesses unique qualifications that necessitate the use of the exception to fair opportunity under FAR 16.505(b)(2)(i)(B), as only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

[REDACTED]

[REDACTED]

- [REDACTED]

- [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

c. **Impact if Not Approved:**

Department of War (DoW) intends to use SpyCloud to support the rapid vetting of companies going through accelerated acquisition processes, in line with DoW's security strategy emphasizing proactiveness, speed and acceleration. SpyCloud allows for automation that would support an accelerated environment, while competitors like [REDACTED] only provide data for manual investigations.

Choosing not to license SpyCloud would fundamentally affect DoW's ability to execute against its security strategy – remaining in reactive, manual defense-mode when the department should be shifting to proactive and automated defense tools and mechanisms. The primary impact of not licensing SpyCloud will be a significantly increased risk of successful account takeovers, ransomware, and data breaches. Without SpyCloud's direct access to stolen credentials and session cookies from the criminal underground, DoW will be unaware of critical threats until after an attack has been launched. This reliance on investigative tools for manual analysis creates a dangerously long exposure window, where DoW will remain vulnerable for days or weeks instead of minutes.

Furthermore, DoW would lack the specific tools to combat modern, sophisticated attack vectors. A major blind spot would be the inability to defend against session hijacking, where attackers use stolen cookies to bypass multi-factor authentication—a threat that OSINT-focused tools are not designed to address. This would also place a much higher operational burden on DoW security teams, forcing them into time-consuming manual investigations and increasing the likelihood of human error, all while leaving critical identity-based risks undiscovered until critical damage has been done.

7. Actions to Increase Competition: ASA(ALT) DES CSI will continuously conduct market research to identify the availability of alternative solutions.

8. Market Research:

[REDACTED]

[REDACTED]

In accordance with Army Regulation (AR) 25-1 and Army Federal Acquisition Regulations Supplement (AFARS) Part 5139, the Army's Computer Hardware, Enterprise Software and Solutions (CHESS) is the mandatory source for commercial information technology hardware and software purchases. The product is available through CHESS by a secondary reseller, [REDACTED]
[REDACTED]. An RFI, RFI # 557077, [REDACTED]
[REDACTED].

Market Research also provided a Rough Order of Magnitude (ROM) received from the SpyCloud via a [REDACTED]
[REDACTED]
[REDACTED]

SpyCloud's product is determined to be available through the following contract vehicles:

[REDACTED]

- a. Procurement History: This is a new procurement.
- b. Other Facts: N/A

[REDACTED]

[REDACTED]

10. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

11. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

12. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable. Competition is expected on this requirement in order to determine reasonableness. However, if reasonableness is unable to be determined by competition, a price analysis, comparison to Independent Government Cost Estimate, comparison to historical prices, and/or comparison to commercial prices may be done. Additionally, certified cost or pricing data will not be required in accordance with FAR 15.403-1(b)(3), as a commercial item is being acquired.

[REDACTED]

13. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]